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CIVILISATIONAL DIALOGUE FORUM ON NOVEMBER 20-21

First after Op Sindoor: India invites Pak to SCO meeting in Delhi

If Pak minister travels to India, will be first since Bilawal in 2023

Shubhajit Roy
New Delhi, October 27

INDIA HAS invited Pakistan's National Heritage and Culture Minister Aurangzeb Khan Khichi for the Shanghai Cooperation Organisation (SCO)'s Civilisational Dialogue Forum in New Delhi on November 20-21, sources told *The Indian Express* Tuesday.

This is the first such invitation by India to a senior minister of Pakistan ever since the military hostilities between the two countries in the wake of Operation Sindoor in May 2025 following the Pahalgam terror attack.

The last time India hosted a senior minister of Pakistan was in May 2023 when Bilawal Bhutto, who was then the Foreign Minister of his country, travelled to Goa for a meeting of the SCO Foreign Ministers.

The invitation to Pakistan's minister is part of Delhi's obligation to invite representatives from all SCO member countries since it had proposed to host the SCO civilisational dialogue forum. Pakistan is scheduled to host the summit of SCO leaders

»CONTINUED ON PAGE 2

EXPLAINED

Why the invitation

Bilateral relations between India and Pakistan, frozen for a decade over Islamabad's state policy of terror, were downgraded further in 2019 when the two countries recalled their envoys. The two countries run into each other in multilateral fora like the SCO. As host of an SCO event, Delhi is obligated to extend an invitation to Islamabad. Pakistan is due to host the SCO summit next year.

Mutual Fund investments are subject to market risks, read all scheme related documents carefully.

[FROM PAGE 1 | FULL REPORTS ON WWW.INDIANEXPRESS.COM]

India invites Pak to SCO meeting in Delhi

next year.

For Delhi, the diplomatic task is cut out. While it has kept bilateral ties frozen for a decade now after the Pathankot and Uri attacks in 2016, it has to engage with Pakistan at the multilateral level.

The civilisational dialogue, expected to be held in one of Delhi's iconic monuments in November, was first proposed by Prime Minister Narendra Modi during the SCO Council of Heads of State summit in Tianjin in September 2025. Defence Minister Rajnath Singh formally announced that India would host the event while addressing the 25th SCO Council of Heads of Government meeting in Dushanbe, Tajikistan, on October 20, 2026.

The key goals are to strengthen people-to-people ties and cultural engagement across Eurasian member states, and showcase the shared heritage, art, literature and traditions of ancient civilisations.

The engagement between India and Pakistan under the rubric of SCO began last month when a senior Indian official visited Islamabad and flagged the issues of "connectivity, regional connectivity, transit and trade".

Alok Dimri, India's national coordinator for the grouping, told Pakistan's public broadcaster PTV that the SCO had come to the neighbourhood after traversing East Asia and Central Asia – the last two summits took place in Bishkek (Kyrgyzstan) and Tianjin (China).

A senior official with the rank of Additional Secretary in the Ministry of External Affairs, Dimri led the Indian delegation at the SCO national coordinators' meeting in Islamabad. Recalling that Prime Minister Modi had proposed a civilisational dialogue among SCO member countries, he said it had been decided that it will be held in New Delhi on November 20.

"This is a journey where Eurasian and Asian landmass member states have come together on the SCO platform," he had said. The SCO member states include Russia, India, Iran, Kazakhstan, Kyrgyzstan, Pakistan, Tajikistan, Uzbekistan, Belarus and China.

The Indian delegation's presence at a SCO meeting in Pakistan was the first in almost two years. In October 2024, External Affairs Minister S Jaishankar went to Islamabad for the SCO Council of Heads of Government meeting. During that visit, Jaishankar had met senior Pakistani leaders under the SCO format.

Cyclone Arnab hurtles towards Andhra coast, landfall advances

Express News Service
Bengaluru, Hyderabad, Bhubaneswar, October 27

CYCLONE ARNAB moved rapidly towards Andhra coast and was expected to make landfall in the early hours of Wednesday, the India Meteorological Department (IMD) said, advancing its earlier forecast by several hours.

It said the landfall was expected between 2am to 4am on Wednesday as against forenoon predicted earlier.

"Due to the fast movement of the cyclone, cyclone Arnab will cross the north Andhra Pradesh coast between Bapatla and Visakhapatnam during the early hours of Wednesday," said IMD.

As of 5.30pm on Tuesday, the 'very severe' cyclone Arnab was located at about 90km southeast of Kakinada and 170 km east-northeast of Machilipatnam. The landfall is expected between Bapatla and Visakhapatnam.

"It is likely to make landfall... as a 'severe' cyclone, with a maximum wind speed of 115-125 kmph, gusting to 140km/hr Wednesday," the IMD said.

Squally weather, rough sea conditions, and strong winds, along with a storm surge with wave heights going 1-2 metres above the astronomical tide, are expected to affect coastal Andhra Pradesh. This is likely to cause inundation along the low-lying areas during the cyclone's landfall. The maximum peak surge is expected near the Kakinada and Yanam coasts.

Cyclone Arnab is expected to make landfall between Kakinada and Visakhapatnam in Andhra Pradesh in the early hours of Wednesday. PTI

Coastal regions of Odisha have already been lashed with heavy to very heavy spells.

The Met department has issued an orange alert for Anakapalli, Srikakulam, Visakhapatnam, and Vizianagaram districts in Andhra Pradesh, along with Odisha's Angul, Boudh, Bhadrak, Cuttack, Dhenkanal, Gajapati, Ganjam, Jagatsinghpur, Jajpur, Kandhamal, Kendrapara, Khorda, Koraput, Nayagarh, Puri, and Rayagada districts.

Thousands evacuated in Odisha

The Odisha government has relocated over 48,000 people from vulnerable areas to shelters in eight districts as heavy rainfall under the influence of cyclone Arnab lashed several districts on Tuesday.

As many as 135 cyclone shelters and 1,600 temporary shelters have been set up to accommodate the people evacuated from low-lying areas and vulnerable places in the state.

Several Odisha districts, including Gajapati, Ganjam, Rayagada, Koraput, Nabarangpur and Malkangiri, are under red warning with the Met department predicting heavy to very heavy rainfall accompanied with lightning and gusty surface wind reaching 60-80 kmph to up to 90 kmph in these districts.

Officials said Malkangiri district will receive maximum rainfall and wind speed in Odisha as it falls in the path of cyclone.

Odisha's special relief commissioner Rajesh Patil said based on the assessment made by the district collectors, a decision has been taken to relocate nearly 48,000 people in the first phase from districts like Nabarangpur, Gajapati, Malkangiri, Ganjam, Koraput, Rayagada, Kalahandi and Nuapada.

As many as 244 fire services teams, 60 Odisha Disaster Rapid Action Force teams and nine NDRF teams have been deployed in various districts.

"The state government is fully prepared to tackle every possible situation...We urge the people not to panic and to cooperate with the administration in dealing with the situation," said the special relief commissioner.

Amid concerns of possible landslides in certain districts due to incessant rainfall, officials said teams have been deployed there with equipment to clear roads and debris, if needed. Maximum vulnerable points for landslides have been identified in Gajapati district where the district administration has been keeping a close watch.

Nearly 3,000 pregnant women approaching the date of delivery have been identified and shifted to nearby hospitals from across the state.

16 districts likely to be hit in Andhra

According to preliminary assessments, the cyclone is expected to have a significant impact across 16 districts, covering 2,460 revenue villages and 92 urban areas. To facilitate coordinated relief operations, authorities have identified 1,763 cyclone shelters and established 2,907 control rooms at district and mandal levels.

As a precautionary measure, beaches have been closed to the public. All fishermen who had ventured into the sea have reportedly returned home, and all 30,043 fishing boats have been secured at harbours to minimise the risk of damage from adverse weather conditions, authorities said.

EXPRESS special

Project GIB shrugs off one lost bird, next batch to be released soon

One of four birds released this month in Rajasthan was found dead near a desert fox den

Jay Mazoomdaar
New Delhi, October 27



Three captive-bred Great Indian Bustards released in Rajasthan's Desert National Park. COURTESY: PROJECT GIB

TOP OFFICIALS running Project Great Indian Bustard (GIB) for conservation of the species have said that the process of releasing captive-bred ones in Rajasthan's Desert National Park will continue as scheduled in the coming weeks, dismissing reports that the authorities would destroy desert fox dens in the area before it.

In a milestone for the conservation of the critically endangered GIB, Union Environment Minister Bhupender Yadav released two six-month-old male GIBs into the wild at Sam in Jaisalmer on October 4. Another two birds were released subsequently. On October 17, one of the four was found dead near a desert fox den. Officials said losses to predation are factored into any rewilding process, and there was no question of mass removal of the desert fox species to secure the GIB.

Rajasthan Chief Wildlife Warden Arun Prasad told *The Indian Express*: "There is no such decision. Destroying desert fox dens is out of the question."

Sutirtha Dutta, lead scientist on the Project GIB, said: "We will release up to 10 six-month-old birds in the first phase. The actual number will depend on the condition of individual birds. The six-month cut-off is ideal because the birds reach 70-75% of their adult size and gain flight capability by then, and are yet young enough to adapt in the wild."

Lessons from Saudi

Long before India launched its captive breeding programme for the GIB in 2018, Saudi Arabia had held a similar project for the bird's evolutionary cousin, the Houbara bustard, in 1986.

Between 1991 and 2016, the Saudi project released 1,117 birds across a royal reserve spanning 2,553 sq km. In the first year, the Houbara releases suffered major setbacks: all five birds in the first batch were lost to predation; only three of 12 survived in the second batch; and only five of 14 in the third.

Houbara project researchers then relocated red foxes and feral cats from the vicinity of the release enclosure. But this did not reduce the overall predation rate significantly, as avian raptors – such as the Steppe eagle and eagle-owl – remained major threats.

Finally, releasing 4-month-old flying sub-adults turned the tide, and by 1994, the survival rate was up to 50%. By 2016, the locally extinct Houbara had reached a self-sustaining population of 300-400 birds.

Predation is natural

Project GIB is releasing six-month-old sub-adults with flight capability which, even at that stage, are typically too large for a desert fox to run down or ambush during twilight hours. However, the birds which roost on the ground are vulnerable to foxes, which are nocturnal predators, at night. Other predators, such as raptors, desert cats and dogs, also pose a threat to GIB in the Desert National Park.

Dutta noted that the captive-bred GIBs they released were seen in the company of wild GIB flocks within days. "Beyond their natural instincts, they are expected to pick up certain survival skills through social interaction over time," he said.

Even wild-born birds are not immune to predation, pointed out G S Bhardwaj, Director, Wildlife Institute of India, which means wild reintroduction programmes are bound to face initial hurdles. "Across species and geographies, it has always been about learning from experience, calibrating the response, and filling up the gaps. Our scientists are doing a good job with the help of Rajasthan forest officials. Project GIB is on the right track," he said.

Ground realities

The Rajasthan Forest Department claims to have established approximately 200 sq km of fenced grassland enclosures inside the Desert National Park for the GIB. However, the quality of the GIB habitat restoration work has often been questioned.

"One cannot train a bird how to avoid predators it has never encountered in captivity. But the species would have a better chance of survival if habitat restoration was given as much importance as captive breeding," said Dau Lal Bohra, a Bikaner-based member of the IUCN Wildlife Health Specialist Group.

A senior forest official said along with the birds, their eggs at wild nesting sites are vulnerable to predation. "Our focus is on the prime nesting areas – around 20 sq km in all – where we do limited predator management through selective translocation. But other predators occupy the empty space. So far, we have succeeded in keeping only dogs out permanently."

Project GIB facilities at Sam and Ramdevra now house 97 birds – 40 from wild-laid eggs and 57 bred in captivity. Of these, 86 birds are being maintained for captive reproduction.

Dutta outlined the project's realistic ambitions: "Captive breeding resulted in 24 live chicks in 2025 and 29 in 2026. Our plan is to release up to 30 birds annually in the coming years. Even at a 30-35% survival rate, that will provide a major boost to India's wild GIB population, currently estimated at around 130."

WEB EXCLUSIVE
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The limits of my language mean the limits of my world.
— Ludwig Wittgenstein

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BECAUSE THE TRUTH INVOLVES US ALL

ECI affidavit to Court has unbroken silences

THE AFFIDAVIT that the Election Commission of India has filed before the Supreme Court is underwhelming, raises more questions than it answers. It comes in response to a petition in the wake of this newspaper's investigation into the ECI's functioning during the ongoing Special Intensive Revision of electoral rolls. The investigation highlighted the erosion of internal checks and balances in the three-member constitutional body that underwrites democracy's fundamental compact. It pointed to its shrinking, on the watch of Chief Election Commissioner Gyanesh Kumar, into a one-man show. Now, the affidavit projects an impression of unanimity, and justifies the Commission's decision-making processes. But it does so while blurring important distinctions and is riddled with persisting silences. The objections recorded by the two ECs, Vivek Joshi and Sukhbir Singh Sandhu, 14 in 10 months, were part of the consultative process, it says — this papers over the fact that most of them were about orders already issued and decisions taken without keeping the two ECs informed. Even where the ECI makes corrections, it does not do so fully. It rolls back controversial changes made to Form 6 for first-time voters online, and sets up a committee that includes experts to review ECINet's compliance with the law. It does so, however, without acknowledging the mistake, or holding anyone accountable.

Going ahead, the persistence of unresolved questions could return to haunt an institution whose credibility is pivotal for safeguarding the right to vote and nourishing people's trust in free and fair elections. In Goa, for instance, 88 of the 97 voters who were left out of the final rolls have subsequently applied through Form 6. But why did the software block, in February, the Electoral Registration Officers' decisions to reverse the deletions? The affidavit has no answer. It addresses a question in West Bengal, but leaves others hanging — the appeals against orders restoring voters to the electoral roll were filed by the office of the state's Chief Electoral Officer, it says. But why were Commissioners Sandhu and Joshi kept in the dark when they asked about this matter earlier, and how did an exercise of this scale proceed, in the name of the Commission, with this level of opacity — again, there are no answers in the affidavit.

The SIR process continues to stumble. In West Bengal, a report in this newspaper has also revealed, judges of tribunals appointed by the Court to decide appeals of those affected by the SIR have pointed out that the ECI requirement for Aadhaar authentication in its portal is coming in their way. Their problem, among others, needs to be addressed by an ECI that listens, one that gives primacy to due process in its conduct vis-à-vis other players and institutions, and internally. The affidavit is an imperfect start. The Court, which has a distinguished record of upholding Article 324 that secures the ECI's powers, must now nudge it towards a course correction. That requires, first, fuller transparency.

A visit to Baku, a gateway to a changing Eurasia



RAJA MANDALA
BY C RAJA MOHAN

EXTERNAL AFFAIRS Minister S Jaishankar's visit to Baku last week pointed to a reset in relations with Azerbaijan that had soured in the last few years. Like the dramatic turnaround in ties with Canada over the past year and a half, the opening in Baku reminds us that productive diplomacy is possible even with countries dismissed as hostile by public opinion.

Even more interesting, the positive results from the engagement with Azerbaijan underline the enduring power of nationalism and self-interest over political affiliations based on religion and ethnicity. Indian perceptions of Turkey, Azerbaijan and Pakistan as a strategic bloc hardened during Op Sindoor in May 2025. Going back a little further, Delhi flagged the 2021 Islamabad Declaration by the three countries, which backed Pakistan's position on Kashmir. Their "Three Brothers" military exercise in Azerbaijan that year gave the partnership a memorable label. During Op Sindoor, calls to boycott Turkey and Azerbaijan spread through television and social media into travel and trade.

Obscured by the media outrage was the reality that Baku's ties with Islamabad were thinner than the language of brotherhood suggested. Baku's engagement with Islamabad was a consequence of Azerbaijan's close ties to Turkey. But Baku's apparent solidarity with Ankara is now showing strains. As Azerbaijan prepares to hand the chair of the Organisation of Turkic States (OTS) to Turkey this week, their emerging differences offer a reminder of the gap between rhetoric on trans-national solidarity and national interests.

Pan-Arabism and pan-Islamism have struggled to overcome divisions in the Middle East. Pan-Turkism, promoted by Turkey's leader Recep Tayyip Erdoğan, also faces limits in Eurasia. Shared religious and ethnic identities can facilitate practical cooperation, but they do not automatically produce a unified strategic bloc.

The idea of Turkic unity gained ground in the late Ottoman era amid imperial decline and European expansion. The Soviet collapse in 1991 opened an opportunity for Ankara to reconnect with the former Soviet republics of the Caucasus and Central Asia. But the new republics valued their sovereignty. They were not interested in trading one hegemon for another. The Turkic Council, established in 2009, became the Organisation of Turkic States in 2021. Its agenda spans trade, transport, technology and culture. Common security commitments are more difficult to develop. The OTS brings together Turkey, Azerbaijan, Kazakhstan, Kyrgyzstan and Uzbekistan. Turkmenistan, although Turkic-speaking, remains an observer.

Recent political friction between Ankara and Baku illuminates the problem. Azerbaijan's restrictions on Islamic headscarves in schools drew sharp criticism from conservative Turkish voices. Baku defended its secular order and rejected outside interference. Azerbaijani authorities also issued arrest warrants for Turkish nationals accused of incitement. Behind the dispute lie different political orientations. External solidarity does not translate into a common position on the relationship between state and religion.

> Azerbaijan's energy resources and transport links give it influence across the Caucasus, inner Asia and the Greater Middle East. Closer engagement can help Delhi expand its access to these regions

Foreign policy adds another divide. Azerbaijan values its strategic relationship with Israel, including defence cooperation. Turkey, the first Muslim-majority country to recognise Israel in 1949, is now sharply at odds with it. Baku sees no reason to abandon a partnership important to its security. To be sure, the Turkish-Azerbaijani partnership has strong roots. That does not mean they will take unified positions on all issues.

The Central Asian republics present a parallel challenge to ambitious visions of Turkic unity. They welcome Turkish investment, transport links and military technology. But they also pursue "multi-vector" partnerships , much like India's "multi-alignment". Their security circumstances differ from Turkey's. Ankara is a prominent member of NATO; and Central Asian states must carefully manage their relations with the big neighbours allergic to NATO — Russia and China.

Kazakh President Kassym-Jomart Tokayev made the Central Asian approach clear by rejecting the proposals to turn the OTS into a military alliance or geopolitical bloc. Kazakhstan and Kyrgyzstan also belong to the Russia-led Collective Security Treaty Organisation. Growing economic ties with China present additional constraints. Central Asian states seek partners to strengthen sovereignty and widen their choices while retaining freedom to engage other powers.

There is, nevertheless, much that Turkic cooperation can achieve. Better ports, railways and customs arrangements can bring material benefits to inner Eurasia. Such initiatives are reshaping its economic geography without requiring agreement on every security question. India must engage this changing Eurasian landscape. Russian power, China's growing presence and Turkish and Iranian ambitions are real. But the Caucasus and Central Asian states have agency of their own.

Jaishankar's visit recognises Azerbaijan's place in that strategy. It borders Russia and Iran, connects westwards through Georgia and Turkey, and looks across the Caspian towards Central Asia. Azerbaijan's energy resources and transport links give it influence across the Caucasus, inner Asia and the Greater Middle East. Closer engagement can help Delhi expand its access to these regions and strengthen its wider continental diplomatic presence. The Caucasus, nestling between the Caspian and Black Seas, has long drawn Russian, Ottoman and Persian ambitions. Its changing balance deserves sustained Indian attention.

India has energy interests in Azerbaijan and a stake in the International North-South Transport Corridor. Baku's ties with Israel and the United Arab Emirates offer further convergence. Delhi can explore these while preserving its partnership with Armenia, as Baku and Yerevan pursue normalisation.

India does not object to other countries having relations with Pakistan. But it does seek their neutrality in India-Pakistan disputes. Our intense social media debates can easily miss the fact that Pakistan's friends have interests of their own. Some of them overlap India's. Exploring that common ground is better than giving Islamabad a veto over Delhi's diplomatic choices. The opening in Baku should encourage Delhi's exploration of a reset with Ankara at an opportune moment.

The writer is a contributing editor on international affairs for The Indian Express. *He is also a professor and director at the Motwani Jadeja Institute of American Studies, Jindal Global University, Delhi*

WHAT THE OTHERS SAY

Lula's comeback is a victory for Brazil and the world, as well as a Trump rebuff.
— The Guardian

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On theatre commands, let's finish arguing, reach a settlement, before next crisis comes



ARUN PRAKASH



ILLUSTRATION: C R SASIKUMAR

SEVEN YEARS after the government directed the newly minted Chief of Defence Staff (CDS) to restructure military commands and bring about jointness through the establishment of theatre commands, the debate seems to have become a quarrel over turf garbed in the language of high principles. The Army worries about not getting air support when needed. The Air Force worries that its scarce squadrons will be divided and controlled by theatre commanders. The Navy worries that a continental mindset will starve it of resources.

These worries are legitimate. But their persistence shows that we have failed to learn what others have learned the hard way: That air power has been a bone of contention between the services ever since World War I, and that inter-service disputes are best settled by negotiations under the watchful eye of committed politicians who comprehend the gravity of the issues.

The status quo, however, is not an option. India's archaic structure of 17 geographically dispersed single-service military commands would be caught flat-footed in modern conflict. Each command answers to its own service headquarters and maintains an area of responsibility that does not align with those of the other services. A conflict on the western or northern fronts, or at sea, would span the boundaries of several commands simultaneously. Coordinating across these arbitrary lines would consume precious time that modern, fast-moving, AI-guided algorithmic warfare simply will not permit. Theatre commands would replace this cumbersome patchwork with a single commander equipped with the operational authority as well as necessary forces.

The most frequently heard objection concerning air power stems from the Air Force doctrine of "centralised control and decentralised execution". Critics argue that dividing scarce air assets among theatre commanders would disrupt this doctrine. Not true, because theatreisation does not violate this core principle. IAF squadrons and wings would remain in their current locations and need not be parcelled out. Air power would still be controlled centrally and tasked, as required, in a decentralised manner — as at present. The sole change is that control would shift from an IAF commander to the theatre commander. Objecting to theatreisation under the guise of this doctrine confuses the principle itself with the person wielding it. Furthermore, critics disregard the fact that theatre commanders would receive advice and guidance on air power employment from a three-star IAF Component Commander.

America's National Security Act of 1947 had carved an independent air force out of the US Army Air Forces, and created a unified defence establishment, but failed to address the question of "who does what". Open conflict broke out between the services. The US Navy wanted a role in nuclear deterrence and suspected the USAF of coveting naval aviation; the USAF believed that strategic bombing had rendered the navy fleet redundant; and the army did not want the Marine Corps trespassing on its ground role.

> The status quo is not an option. India's archaic structure of 17 geographically dispersed single-service military commands would be caught flat-footed in modern conflict

Defence Secretary (Minister) James Forrestal assembled the joint chiefs at Key West and insisted that they would not disperse till they came to an agreement on their respective roles and missions. The air force took primary responsibility for strategic air warfare. The navy kept carrier aviation and the Marine Corps. The army kept land combat. While the deal did not end inter-service acrimony, the Key West Agreement had established a principle: Service roles and missions would be allocated or re-allocated by mutual agreement, under civilian political authority.

Two decades later, the same principle resolved a different dispute. In Vietnam, the US Army, in addition to owning a fixed-wing tactical transport fleet, had built a large helicopter force and was arming it. The USAF held that fixed-wing aircraft supporting ground troops were its business. In 1966, the two services negotiated and agreed on a swap. The US Army agreed to give up its fixed-wing aircraft in exchange for combat helicopters, while the USAF relinquished its claim to most forms of rotary-wing aircraft.

It is obvious that Indian problems call for India-specific solutions, and it would be foolish to "cut and paste" foreign paradigms on ourselves. But does that mean that we should refuse to learn from others? Or close our eyes to ongoing conflicts, which demonstrate the dizzying transformation in the nature and grammar of war? Ukraine, despite lacking a traditional navy, has crippled Russia's Black Sea Fleet and sunk its flagship, the cruiser Moskva. Iran, with its air force decimated, has leveraged missiles and drones to attack 14 US military bases in West Asia and to contest control of the Persian Gulf. India, on the verge of major weapon acquisition commitments, must not shut its eyes to these momentous developments in warfare.

Britain offers lessons of a different kind. In 2023, Air Chief Marshal Sir Richard Knighton took charge of the Royal Air Force (RAF). An aeronautical engineer by training, he became the first non-pilot ever to head the service. In 2025, he went further still, becoming CDS and professional head of all three services. Earlier, the UK had broken another long-standing tradition by appointing General Sir Gwyn Jenkins, a Royal Marine, as First Sea Lord and head of the Royal Navy. The wisdom of such unconventional choices can be debated, but they reflect open-mindedness, a spirit of innovation and decisiveness on the part of the decision-makers. Contrast this with our own seven-year stasis on theatre commands.

It took the US nearly four decades, and several operational disasters, following the Key West Agreement to achieve true jointness through the Goldwater-Nichols Act of 1986. Given its fraught security environment, India cannot afford the luxury of further procrastination. The path forward requires bold service chiefs willing to break old shibboleths, a resolute CDS who can act as an honest broker-cum-persuader, and a government with a clear-eyed vision, anchored in a formal national security strategy.

The next security crisis will not wait for the services to finish arguing, and a settlement should be reached before it comes.

The writer is a former Indian Navy chief

Clean air needs targets, timelines, accountability



ZERIN OSHO

AFTER SERIOUS heatwaves and deadly deluges, it's time for toxic air to afflict lives and livelihoods in India. Again, till the cycle is forgotten. This seasonal amnesia consistently collides with a revealing policy paradox. In September, the Union government's latest Swachh Vayu Sarvekshan rankings were released. Lucknow was crowned India's best-performing million-plus city. The city deserves credit: Its annual average PM10 levels have fallen from 253 micrograms per cubic metre in 2017-18 to around 135 today. Even then, this is more than double the national safety standard of 60. The country's capital highlights an equally serious malaise: A recent analysis by the Centre for Research on Energy and Clean Air reveals that Delhi has had no appreciable improvement in its winter air quality over the last four years, despite pollution-control measures and activities under the Graded Response Action Plan. Are we missing the wood for the trees?

Swachh Vayu Sarvekshan assesses administrative activity — sweeping roads, managing waste, paving sidewalks and preparing action plans. Actual reductions in particulate matter account for just 2.5 per cent of a city's total score. A municipality can follow procedures, earn national accolades and still have dangerously polluted air.

This is the blind spot in India's clean-air strategy. Under the National Clean Air Programme (NCAP), India has improved its ability to design programmes, allocate budgets and track municipal action. But its policy framework has failed to account for the economic cost of delays in delivering clean air. An assessment by the UN Environment Programme (UNEP) and the Climate and Clean Air Coalition, Hidden Assets, offers a way to understand this cost. South Asia bears the world's heaviest economic burden from air pollution, losing the equivalent of 10 per cent of regional GDP annually through reduced productivity and healthcare costs. Every rupee invested in a package of 25 climate and clean-air measures could yield an estimated Rs 21 in economic and health benefits. The returns include lower hospital bills, fewer missed workdays and improved productivity, alongside the economic value of lives saved and years of healthy life preserved. Even when non-market benefits are excluded, the report estimates a global return of Rs 4 for every rupee invested.

If Delhi and the NCR meet national air quality standards on schedule from 2026, their cumulative PM2.5 exposure burden could fall by 20 per cent by 2040. An eight-year delay, reflecting the study's global average, would halve that reduction. Delayed implementation does not merely postpone benefits; it destroys them. A filter installed in 2034 cannot clean the air a child breathed in 2026, nor can a delayed electric bus fleet recover lost workdays or school attendance.

> If Delhi and the NCR meet national air quality standards on schedule from 2026, their cumulative PM2.5 exposure burden could fall by 20 per cent by 2040

Why do we lose this time? The study identifies institutional fragmentation as a major obstacle across developing nations. Air pollution results from transport, electricity generation, industry, waste management, agriculture and household cooking. These fall under different ministries, departments and urban agencies. When clean air is treated as the responsibility of environment departments alone, coordination suffers, deadlines slip and accountability diffuses.

India has shown that it can manage complex transitions when responsibilities are clear. The expansion of rural LPG connections under the Pradhan Mantri Ujjwala Yojana and the growth of solar power demonstrate its capacity to deliver at scale. Clean-air policy, however, cannot depend on emergency measures and disconnected schemes. As the government considers NCAP 2.0, it must change how success is measured. Clean-air spending should be judged by how much human exposure it reduces, how quickly relief reaches people and which agency faces consequences when deadlines are missed. Central grants and Finance Commission transfers should reward sustained reductions in pollution exposure.

Air pollution's costs are well understood, as are many of the solutions. India's clean-air policy needs not another list of measures, but a stopwatch.

The writer is director, India Programme at the Institute for Governance & Sustainable Development

CBIC issues circulars to simplify GST reforms

Aanchal Magazine
New Delhi, October 27

FOLLOWING THE latest decisions of the Goods and Services Tax (GST) Council, the Central Board of Indirect Taxes and Customs (CBIC) issued eight circulars focusing on simpler registration with a list of required documents, export payments and clear guidelines for raising tax demands with focus on pre-show cause notices and proving the intent of fraud before invocation of charges.

Citing an analysis of GST registration applications, including the reasons for rejection and the nature of queries raised during processing, the CBIC said that delays or rejections were often attributable to certain deficiencies in the applications including non-furnishing of requisite information or documents; submission of incorrect, incomplete, or inconsistent details, or uploading of documents that are not clearly legible. Stating that such issues are commonly observed in respect of identity details of the applicant, proof of principal place of business, the CBIC directed tax officers to refrain from seeking unwarranted documents or raising presumptive queries not relevant to GST registration applications. "While there is a need to exercise due diligence in processing registration application to prevent GST registration of being obtained by unscrupulous and fraudulent elements for passing on input tax credit (ITC) without any underlying supply, at the same time, it is also important to ensure that genuine applicants seeking registration are able to complete the process without undue inconvenience," the CBIC said in the circular dated October 26.

For premises taken on rent or lease, the applicant is required to upload a clear and legible copy of the valid registered rent or lease agreement and no other document is required. If the rent or lease agreement is not registered, then an applicant has to upload the latest copy of any one of the documents in the name of the landlord such as the property tax receipt, municipal khata, property identification document, electricity or water bill along with the rent agreement. Under GST, suppliers exclusively dealing in goods, with annual aggregate turnover of Rs 40 lakh are required to register, while for suppliers in the supply of goods and services both or supply of services only, the threshold is Rs 20 lakh.

"It is, therefore, in the interest of the applicant that he opts for and undergoes authentication of Aadhaar number...to get his application for registration processed at the earliest," it said.

For issues related to demand, adjudication and appeal proceedings under the Central GST (CGST) Act, the CBIC said there has to be a uniform reference framework for officers engaged in quasi-judicial proceedings and consistency, transparency and uniformity in the implementation of provisions of law across field offices. The circular stated that pre-show cause notice has to be issued to taxpayers, wherever feasible, as it offers them a "vital opportunity to clarify their position prior to formal proceedings". FULL REPORT ON WWW.INDIANEXPRESS.COM

• HEALTH

The risks of food colouring, as UP steps up scrutiny

Maulshree Seth
Lucknow, October 27

BRIGHT RED chutney served with samosas, pink cotton candy sold outside schools, vivid red tandoori chicken — food colourings have come under scrutiny in Uttar Pradesh after authorities found non-food grade industrial dyes in chutney. Amid the festive season, with Diwali approaching, the state's Food Safety and Drug Administration has issued detailed guidelines about where and how food colours can be used, which ones cannot be used, and how vendors must measure and account for the colours they buy.

What's under the scanner?

For street-food lovers, one of the most direct changes concerns the green and red chutneys served with *samosas*, *chaat*, *momos* and rolls. The guidelines prohibit adding colours to chutney and advise vendors to use ingredients such as tomatoes, beetroot, coriander and mint to achieve the desired colour and flavour.

Cotton candy and ice lollies have also been included. The use of non-food colours, particularly Rhodamine-B, is prohibited. This industrial dye is used in textile and paper colouring and cannot be used as a substitute for food-grade colour. The same restriction applies to the use of other industrial dyes to give a bright red appearance to chicken *tikka*, *kebabs*, *chaap* and fried fish. Vendors have been advised to use suitable food ingredients, including Kashmiri red chilli and degi mirch, for colour and flavour.

How widespread is use of Rhodamine-B?

A food safety officer had earlier told *The Indian Express* that Rhodamine B is usually reported from roadside vendors in small cities. "Small vendors are not aware that this dye can be harmful as effects might not always be felt immediately," the officer had said. "Although no colouring is allowed in cooked food, in the bigger cities usually edible food colours are used to give the red colour in butter chicken and tandoori chicken."

What risks do prohibited dyes in food pose?

The guidelines list several prohibited industrial dyes, including Rhodamine-B, Metanil Yellow, Butter Yellow, Malachite Green, Auramine, Orange II and Sudan dyes. Their suspected illegal uses range from giving a bright pink or red appearance to cotton candy, chutney and sweets to making turmeric, pulses, chilli powder and other spices appear more vibrant. Sudan dyes have also been associated with adulteration of edible oils and packaged sauces. Their consumption can pose several health risks, varying by substance and level of exposure.

The use of Rhodamine B in food for a long time, for instance, could lead to liver dysfunction or cancer. When exposed to large amounts over a short period, it results in acute poisoning. Tartrazine is a synthetic yellow food dye and has been indirectly linked to hives, food allergies like swelling of the lips, tongue, throat and neck. Carmoisine, a red dye, can trigger hypersensitivity reactions, including skin swelling, breathing difficulties and hives.

Can artificial colours be used in sweets and cakes?

Yes, under the Food Safety and Standards (Food Products Standards and Food Additives) Regulations, 2011, but only when the colour is permitted for the particular food category and the prescribed limit is followed.

Colour permitted in a cake cannot automatically be used in bread, chutney or another product. This is because colours serve different purposes in different foods. Their safety also depends on how much quantity is consumed and how the colour behaves during processing. For instance, the FSSAI says that assessing a colour's use in deep-fried snacks may require information on its heat stability and the formation of by-products.

Natural colours, too, are subject to category-specific conditions.

WHAT THE LAW SAYS

- The Food Safety and Standards Act of 2006 provides for punishment for sub-standard, misbranded and unsafe food.
- Depending on the violation, the penalty may range from a fine of Rs 3 lakh to imprisonment up to six months.

• LEGAL

Punishment and pendency : Need for, role of a sentencing council



EXPERTS EXPLAIN

SIDHARTH LUTHRA & RAGHAV SENGUPTA

LUTHRA IS A SENIOR ADVOCATE, SENGUPTA IS AN ADVOCATE

TWO PEOPLE convicted of the same crime in India can walk away with very different sentences, and the difference often has less to do with the law than with which judge or Bench heard the case.

Sentencing is the process where the State translates prescriptive ranges — for instance, 'up to ten years' imprisonment — into a specific prison term, fines, probation or community sanctions for the convict(s). In India, this decision is left almost entirely to an individual judge's or Bench's discretion.

Statutes set out the maximum, and sometimes the minimum sentences. There is no checklist of what should count as a serious aggravating factor, what counts as genuine mitigation, or how prior conduct and remorse should be weighed. Empirical research, such as Dr. Mrinal Satish's work on rape sentencing, shows that courts have reduced sentences based on legally irrelevant factors and retrograde concepts such as the complainant's supposed "chastity" or her subsequent marriage, while ignoring psychological harm or breach of trust.

Unequal justice

Articles 14 and 21 of the Indian Constitution prohibit arbitrary State action and require fair, just and reasonable procedures whenever liberty is restricted. If two similarly placed offenders receive very different sentences because one judge treats poverty or social standing as a mitigating factor while another does not, the resulting disparity is hard to reconcile when dealing with equality before the law.

The Supreme Court acknowledged this in *Sunita Devi vs State of Bihar* (2024), while observing that "sentencing shall not be a mere lottery" and directed the Centre to examine the feasibility of a comprehensive national sentencing policy, potentially via a Sentencing Commission. The Centre has tasked the Law Commission of India with examining the issue, and its recommendations are expected soon. Interestingly, the Law Commission of India raised the same concern more than 50 years ago in its 47th Report. Yet, Parliament has never taken up the task of designing a coherent framework.

Unguided discretion

Framing such a policy requires detailed empirical research into existing practices, impact on prison capacity, and the relationship between sentencing purposes (deterrence, rehabilitation and protection of the public) measured against actual outcomes.

The present mechanism often ignores salutary provisions of probation and other permissible factors.

Indian statutory provisions already provide alternatives to custody, in accordance with Sections 401 and 402 of the BNSS, along with Sections 3, 4 and 6 of the Probation of Offenders Act 1958 that require courts to consider probation for the offender in eligible cases.

However, there is no general framework explaining how courts may use these alternatives against competing aims of deterrence, reformation, and rehabilitation.

In the case of *Soman vs State Of Kerala* (2012), the Supreme Court recognised these competing principles, while also observing that sentencing remains one of the weakest parts of criminal justice administration.

So it is at the appellate stage that courts often get tasked with correcting harsh or unduly lenient sentences, on a case-by-case basis without a common yardstick to apply. As a result, valuable judicial time is spent by appellate courts undertaking this exercise. The primary responsibility for this lies with the convicting court empowered under Section 258(2) of the BNSS, which requires a Sessions Judge to hear the accused individual separately on sentence, once they have been convicted.

That particular hearing should allow the parties to gather relevant material to determine mitigating and aggravating circumstances for sentencing.

Lessons from the English model

- In England and Wales, Parliament created the Sentencing Council and backed it with a Sentencing Code.
- Guidelines follow a step-by-step method. Judges first classify the offence by culpability and harm caused. Each culpability-harm combination has a starting point and a category range.
- Judges then adjust this provisional sentence based on aggravating and mitigating factors, apply any reduction if the accused pleaded guilty, account for multiple offences, and make ancillary orders.

What such a council would do

A Council created by an Act of Parliament could be tasked with three core functions. First, develop offence-specific guidelines that require courts to pass through a three-stage framework: (1) determine seriousness by assessing culpability and harm using tailored factors (planning, violence, weapon use, victim vulnerability, demonstrable physical or psychological harm); (2) mark an indicative starting point and range within the statutory envelope for an ordinary case; and (3) individualise and justify the sentence by considering only those offender-related circumstances that are based on recognised purposes such as rehabilitation or the impact of punishment.

Secondly, the proposed Council should build a national sentencing database drawing on the National Judicial Data Grid's infrastructure, with anonymised information on offence type, harm and culpability factors, starting points, adjustments, and final sentences. This would allow Parliament, courts and the public to see where disparity lies and whether guidelines are working.

Thirdly, guidelines should be issued as delegated legislation, placed before Parliament for approval, and treated as advisory but strongly presumptive. Sentencing courts must consider them in every case and provide reasons when they depart. This preserves judicial independence while making discretion accountable.

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